

STATE OF NEW YORK

4013--A

2025-2026 Regular Sessions

IN SENATE

January 31, 2025

Introduced by Sens. PARKER, GALLIVAN, MARTINEZ, SEPULVEDA -- read twice and ordered printed, and when printed to be committed to the Committee on Veterans, Homeland Security and Military Affairs -- recommitted to the Committee on Veterans, Homeland Security and Military Affairs in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to establishing a peer support program for veterans

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The mental hygiene law is amended by adding a new section 7.42 to read as follows:

§ 7.42 Peer support program for veterans.

(a) For the purpose of this section:

1. the term "veteran peer support services" shall include any form of peer to peer counseling services for the treatment and recovery of mental illness, alcohol abuse, substance abuse, and/or chemical dependence that are delivered by a veteran peer counselor to veterans.

2. the term "veteran peer counselor" shall mean a veteran who provides veteran peer support services.

3. The term "veteran" means a person:

(i) who served in the active military, naval, air or space service of the United States and who was discharged or released therefrom under conditions other than dishonorable; or

(ii) has a qualifying condition, as defined in section one of the veterans' services law, and has received a discharge other than bad conduct or dishonorable from such service; or

(iii) is a discharged LGBT veteran, as defined in section one of the veterans' services law, and has received a discharge other than bad conduct or dishonorable from such service; or

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (iv) is a "veteran" as defined by local law.

2 (b) 1. The commissioner, in consultation with with the commissioner of
3 addiction services and supports and the commissioner of veterans'
4 services shall establish recommended minimum qualifications for veteran
5 peer counselors. Such recommended qualifications shall be consistent
6 with the goals and purposes of veteran peer support services and may be
7 based on consideration of factors including, but not limited to,
8 completion of approved courses of study or equivalent on-the-job experi-
9 ence in mental health counseling and/or alcoholism and substance abuse
10 counseling, the criteria established by the United States Secretary of
11 Veterans Affairs for appointment as a peer specialist pursuant to 38
12 U.S.C. § 7402 (b)(13), other credentials established or recognized by
13 the office or any other experiences, qualities or qualifications deemed
14 necessary or desirable in a veteran peer counselor.

15 2. The commissioner shall make the recommended minimum qualifications
16 established pursuant to paragraph one of this subdivision publicly
17 available and disseminate such recommended qualifications to munici-
18 palities and other entities that provide veteran peer support services.

19 3. The commissioner in conjunction with the commissioner of
20 addiction services and supports and the commissioner of veterans'
21 services shall establish procedures for providing or connecting veteran
22 peer counselors to training and development opportunities that provide
23 experience, education, credentials or other recognition meeting the
24 recommended minimum qualifications established pursuant to paragraph one
25 of this subdivision.

26 (c) Nothing in this section shall be construed as requiring profes-
27 sional credentials, licensing or training as a precondition of serving
28 as veteran peer counselor, nor shall anything in this section be
29 construed as affecting the eligibility criteria for participating in or
30 providing "veteran peer support services" established by local law or by
31 an entity's policies.

32 § 2. This act shall take effect one year after it shall have become a
33 law. Effective immediately the addition, amendment and/or repeal of any
34 rule or regulation necessary for the implementation of this act on its
35 effective date are authorized to be made and completed on or before such
36 date.